



POLICE DEPARTMENT

In the Matter of the Disciplinary Proceedings :

- against - :

FINAL

Police Officer Reginald Jones :

ORDER

Tax Registry No. 927006 :

OF

Property Clerk Division :

DISMISSAL

-----X
Police Officer Reginald Jones, Tax Registry No. 927006, Shield No. 1320, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 86232/10, as set forth on form P.D. 468-121, dated March 9, 2010, and after a review of the entire record, has been found Guilty as Charged, of Specification Nos. 1, 2, 3 and 5 and having Pleaded Guilty, is found Guilty of Specification No. 4.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Reginald Jones from the Police Service of the City of New York.

RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE: On MARCH 2, 2012 @0001HRS.

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

August 31, 2011

-----X
In the Matter of the Charges and Specifications :

Case No. 86232/10

- against - :

Police Officer Reginald Jones :

Tax Registry No. 927006 :

Property Clerk Division :

-----X
At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Robert W. Vinal
Assistant Deputy Commissioner - Trials

A P P E A R A N C E:

For the Department: Scott Rosenberg, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Michael Martinez
Worth, Longworth & London, LLP
111 John Street—Suite 640
New York, New York 10038

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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POLICE OFFICER REGINALD JONES

The above-named member of the Department appeared before me on May 16, 2011, charged with the following:

1. Said Police Officer Reginald Jones, assigned to the 41st Precinct, on or about October 5, 2008, in Queens County, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer did act in concert with another, to wit: Person A, in the commission of a larceny.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

2. Said Police Officer Reginald Jones, assigned to the 41st Precinct, on or about October 5, 2008, in Queens County, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer did knowingly associate with a person known to this Department, to wit, Person A, who was reasonably believed to be engaged in or likely to engage in criminal activities.

P.G. 203-10, Page 1, Paragraph 2(c) – PUBLIC CONTACT – PROHIBITED CONDUCT - GENERAL REGULATIONS

3. Said Police Officer Reginald Jones, assigned to the 41st Precinct, on or about October 5, 2008, in Queens County, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer, having knowledge that a larceny was being committed, did fail to take police action.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT PROHIBITED CONDUCT

4. Said Police Officer Reginald Jones, while assigned to the 41st Precinct, while off-duty, on or about and between November 23, 2007 and October 5, 2008, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so, in that said police officer was working for Eastern Security Corporation, without obtaining an approved Off-Duty Employment application.

P.G. 205-40, Pages 1 & 2, Paragraphs 1 & 2 OFF DUTY EMPLOYMENT

5. Said Police Officer Reginald Jones, while assigned to the 41st Precinct, while on-duty, on or about December 30, 2009, engaged in conduct prejudicial to the good order, discipline or efficiency of the Department in that Police Officer Jones impeded a Department investigation by making inaccurate and misleading statements during an official Department interview. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT PROHIBITED CONDUCT

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The Department was represented by Scott Rosenberg, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, pleaded Guilty to Specification No. 4 and entered a plea of Not Guilty to the remaining charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification Nos. 1, 2, 3 and 5. Respondent, having pleaded Guilty, is found Guilty of Specification No. 4.

SUMMARY OF EVIDENCE PRESENTEDIntroduction

It is not disputed that as the result of a Departmental disciplinary adjudication in 2006, Respondent was placed on dismissal probation for one year.¹ In November, 2007, Respondent began working as an armed security guard for Eastern Security Company (Eastern Security) and was assigned to perform security duties at a Circuit City Corporation retail store in Queens (Circuit City). Respondent did not seek or obtain Department approval to engage in this off duty employment. Respondent worked as a security guard at Circuit City on October 5, 2008. The manager of Circuit City at that time was Person B.

¹ The Respondent's personnel record shows that this dismissal probation period ended on April 8, 2007, and that on April 9, 2007, Respondent was placed on Level 3 Special Monitoring.

POLICE OFFICER REGINALD JONESThe Department's Case

The Department called Sergeant John Albertelli, Detective Radames Padilla, Sergeant Stephen Antiuk, and Sergeant James Coleman as witnesses.

Sergeant John Albertelli

Albertelli, a 20-year member of the Department, testified that from February, 2007 until March, 2010, he was assigned to Internal Affairs Bureau (IAB) Group 22.

In October, 2008, Albertelli was assigned to investigate Respondent after the manager of Eastern Security called IAB and stated that Respondent was employed by him and that he believed that he had been involved in a larceny at Circuit City.

On October 10, 2008, Albertelli went to Circuit City and interviewed Person B.² Person B told him that he was working as the manager at Circuit City on the afternoon of October 5, 2008, when he received an anonymous phone call from a female who stated that she had just observed a black male outside Circuit City putting a number of televisions into a vehicle. She told Person B the license plate number of the vehicle and she provided a description of the vehicle and the male. Person B told Albertelli that after he received this call, he went to the floor of the store to determine if any televisions had been removed that day and he then spoke to the Respondent who was working as the security guard at the front door that day. Respondent told Person B that he did not observe any televisions being carried out of the store that day. Person B told Albertelli that he then went to the check out register and determined that no television sales had been rung up that day. Person B told Albertelli that he subsequently obtained the video

² Although Albertelli initially recalled that this interview had taken place on October 5, after his recollection was refreshed on cross-examination, he agreed that it was on October 10.

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recording from the surveillance camera which is focused on the front door. The video footage showed six televisions being taken out of the store on four separate occasions.

Albertelli took the license plate number that had been provided to him by Person B and conducted a Department of Motor Vehicles (DMV) check on the license plate number. DMV records showed that the owner was Enterprise Rental. He telephoned Enterprise Rental and an employee told Albertelli that the rental agreement showed that Person A had rented the vehicle.

Albertelli contacted Assistant District Attorney Dan O'Leary at the Queens County District Attorney's Office (QCDA). QCDA issued a subpoena to Enterprise Rental which supplied Albertelli with a copy of the rental agreement. [Department's Exhibit (DX) 2 is the rental agreement between Person A and Enterprise Rental and shows that Person A rented the vehicle on September 25, 2008 and returned it on October 8, 2008.]

Albertelli conducted a DMV check on Person A and obtained his photograph which he showed to Person C, the manager of the Enterprise Rental location where the vehicle was returned. Person C identified Person A's photo as the man who had rented the vehicle along with an older black male.

Albertelli testified that Respondent's cell phone number was listed on his Eastern Security employment application which was shown to him by Person D the manager of Eastern Security. He contacted Sprint Nextel and requested the Respondent's cell phone records from January 1, 2008 through October 14, 2008. [DX 4 and 4A are a certified copy of Respondent's cell phone records from Sprint Nextel and a compact disc containing these records.] When he reviewed these call records, Albertelli noticed that

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Respondent had placed a cell phone call at 3:38 p.m., which coincided with the time of the alleged larceny. Through an administrative subpoena, Albertelli obtained the subscriber information for the phone number that Respondent had called. The subscriber was Person A (DX 5).

Albertelli testified that Person B initially provided him with a "zip drive" containing the files of the Circuit City surveillance video tapes which was not functional. He later received a functional copy. (DX 6 is a DVD copy of the Circuit City surveillance video tape recorded on October 5, 2008.0

Albertelli testified that he conducted an official Department interview of Respondent on December 30, 2009 (DX 3 and 3A are an audio tape recording and a transcript of this interview.0

On cross-examination, Albertelli confirmed that Circuit City did not call the Department directly. Rather, Person B called a Loss Prevention Officer who called Eastern Security. Person D, an employee of Eastern Security who is a former member of the service, called IAB. Albertelli acknowledged that, at some point, Circuit City contacted the Department and generated a complaint report, but he denied that this was done through IAB.

Albertelli confirmed that his first visit to Circuit City was on October 10, 2008, five days after the incident and the last date that Respondent worked at Circuit City. Albertelli also confirmed that it was not until December 30, 2009, after his official Department interview, that the Respondent was placed on Modified Assignment. Albertelli acknowledged that he was never able to interview Person A despite efforts to get in touch with him. Neither the Respondent nor Person A was arrested.

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Albertelli conceded that the surveillance video was “too grainy” to identify the face of the thief and that, in order to do so, he had to run the license plate number on the car into which the televisions had allegedly been placed. He obtained photographs of persons whose names matched that of the person who rented the car and compared these to the description given to Person B by the woman who observed the car being loaded. He conceded that, while at Enterprise Rental, he did not conduct a photo array, but instead conducted a “confirmatory” by showing only Person A’s photo to Person C.

Albertelli acknowledged that although Person B stated that no televisions were sold on October 5, 2008, on the video tape it appears that one large box was removed. However, because of the grainy quality of the video, he could not definitively determine what the box contained. He confirmed that the video shows that it was busy at Circuit City on the day of the incident.

Albertelli agreed that during the Respondent’s official Department interview, there were moments that were confrontational. He agreed that he never showed the surveillance video to the Respondent to have him explain his actions as depicted on the video. He did show the picture of Person A he obtained from the DMV to the Respondent and asked if it was a picture of the individual whom he referenced in his official Department interview.

Albertelli admitted that he never discovered any evidence to suggest that Person A gave any profits or stolen televisions to Respondent or someone that Respondent knows. Additionally, he did not discover any evidence of a meeting between Respondent and Person A during which they conspired to set up a theft at Circuit City.

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The stolen televisions were never recovered and Albertelli was never provided by Person B with documentation regarding the specific television sets that were taken. Person B was also not able to provide any documentation to show that no televisions had been sold up until the point at which he received the call from the informant. Albertelli conceded that he never obtained search warrants which would allow him to search for the stolen televisions inside Respondent's residence or Person A's residence.

On redirect examination, Albertelli acknowledged that during his official Department interview, Respondent stated that Person A had told him that he had stolen televisions and that Person A had offered to give Respondent a stolen television. Respondent also stated that he continued to have contact with Person A during 2009 regarding the passing of their friend Person E.

On recross-examination, Albertelli agreed that there are other registers inside Circuit City where a customer could make purchases in addition to the registers visible in the surveillance video. However, he stated that there are no registers in the area that Person A was coming from as depicted in the video.

Detective Radames Padilla

Padilla, a 19-year member of the Department, is currently assigned to Bureau of Special Operations. Prior to his current assignment, Padilla was assigned to the Department Advocate's Office, where his duties entailed investigations and preparation for trials.

On October 27, 2010, Padilla served a subpoena on Person B to appear as a witness for the Department in the Trial Room to testify regarding these charges. Person B

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accepted and signed the subpoena and informed Padilla that he did not have a problem testifying, but that he would be entering military service in January, 2011.

Padilla testified that, on October 28, 2010, he visited Enterprise Rental on East 177 Street in an attempt to serve a subpoena on Person C to appear as a witness for the Department. However, he was informed by workers there that Person C did not work there anymore. Padilla was unable to obtain Person C's contact information.

On cross-examination, Padilla acknowledged that he did not take any steps to locate Person C other than visiting Enterprise Rental. Person B did not tell him why he stopped working at Circuit City nor did he show Padilla any paperwork to corroborate that he was entering the military. Padilla agreed that he has not taken any actions to locate either individual since October, 2010.

Sergeant Stephen Antiuk

Antiuk, a 14-year member of the Department, is currently assigned to Internal Affairs Bureau (IAB) Group 22 where he investigates corruption and serious misconduct. Antiuk was approached by his group leader, Lieutenant Weiss, who requested that he attempt to locate Person B. On several occasions, Antiuk called a telephone number he obtained from the case file and reached an electronic recording device that stated his mailbox was full. Antiuk also spoke with Detective Radames Padilla, in the Department Advocate's Office, who advised him that Person B was joining the United States Military. To corroborate this information, Antiuk spoke with an individual in the U.S. Department of Defense's Personnel Division. However, this individual informed him that the military does not provide information regarding an individual's status in the military.

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On cross-examination, Antiuk conceded that he did not know whether Person B had actually entered the military and that he never attempted to contact Person B's family, Person B's former employer, or anyone else who might be in contact with Person B.

Sergeant James Coleman

Coleman, a 17-year member of the Department, is assigned to IAB Group 22 where he investigates misconduct and corruption cases. On October 13, 2008, he picked up a surveillance video from Circuit City (DX 6) which he delivered to the Department's Technical Assistance Response Unit (TARU). (DX 1 is a report prepared by Coleman describing his actions with respect to the video.)

On cross-examination, Coleman acknowledged that the first time he saw the video was at Circuit City where he met the manager and was taken to a back room to view the video. He stated that this was the only time he viewed the video and he denied that he had tried to view it at IAB headquarters and had problems doing so. He confirmed that he took the video to TARU where he left it with Detective DeFranco. He did not recall taking any further action regarding this investigation.

The Respondent's Case

Respondent testified in his own behalf.

The Respondent

The Respondent, an 11-year member of the Department, recalled that in October, 2008, he was assigned to the 41 Precinct, having been transferred there from the 23

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Precinct. Respondent testified that he obtained off-duty employment with Eastern Security and was working security at Circuit City for about eight months prior to October 5, 2008. The Respondent testified that he did not apply for or inform the Department of this off-duty employment because he knew this off-duty employment would not be authorized. He explained that he obtained this off-duty employment because he had financial difficulties and owed child support payments.

The Respondent testified that he filled out and submitted a work application with Eastern Security through his friend Person E who had a contact inside the company. Thanks to Person E, the Respondent was able to complete the application without providing Eastern Security with information regarding what Department command he was assigned to. Respondent requested that Eastern Security assign him to work at Circuit City in Queens. He explained that because he wanted to be discreet about working off-duty without Department authorization, he wanted to work at a location that was not within the borough where he lived (Manhattan) or within the borough where his assigned command was located.

Respondent described his duties at Circuit City as standing at a podium located near the front door and scanning and marking purchase receipts as customers walked out of the store with their purchases. If he noticed that a customer's receipt did not match the item that the customer was leaving the store with, Respondent was instructed to inform Person B. He stated that there were often defects in the receipt printouts and that they were difficult to read. Person B instructed him that he was only to check receipts and that he should not take any enforcement action.

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The Respondent testified that on October 5, 2008, he received phone calls on his cell phone from Person A. Prior to October 5, 2008, he did not have a close relationship with Person A and simply knew him as a "guy from the neighborhood" who he called "P." He had not seen Person A in several months prior to October 5, 2008. He explained that the reason Person A called him that day was to inform him that Person E had passed away. The Respondent testified that Person A called him several more times that day to talk about Person E's death. Not every call resulted in a conversation because "first we had signal trouble. Get in, don't answer, and you know, a voicemail or something. You see the number, you call back." He stated that they spoke about Person E's exotic bird and his cat because Person E had lived alone and now that he was dead there was no one to take care of the animals. The Respondent testified that although he informed Person A that Person E had assisted him in obtaining a security job at Circuit City, Person A never told him he was going to come to Circuit City that day.

The Respondent testified that at about 5:00 pm on October 5, 2008, Person B asked him if he had seen anyone "run out with televisions." He told Person B that he had not seen anyone run out of the store with a television, although he had seen people exit with televisions they had purchased. Person B showed him a surveillance video, although this video was different than DX6. Person B pointed out an individual on the video who walked out with a television after showing the Respondent his receipt.

The Respondent testified that after Person B showed him this video, he "put the two together because I had seen what happened." He did not see Person A enter the store, but saw him come out. He explained that he did not recognize him as the person with whom he spoke earlier that day on the phone regarding Person E's death. He stated that

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Person A appeared different than last time he saw him because he had facial hair and a full beard. Person A never made any indication that he recognized Respondent. Respondent testified that, even after seeing Person A pass by a few times, he was still not certain that it was actually Person A. Rather, he merely thought the individual looked like him.

The Respondent spoke to Person A on the evening of on October 5, 2008. He described this conversation as "volatile." The Respondent stated that when Person A answered the phone he told him, "You fucking faggot...What is wrong with you?...You're fucking stealing, man!" According to the Respondent, Person A did not affirm or deny his allegations at first. However, after the Respondent explained to Person A that Person B had showed him a video of Person A's theft and that he was going to lose his job, Person A offered him a television. The Respondent replied, "Fuck, no, I don't want one." He testified that he did not know that Person A was coming to Circuit City on October 5, 2008.

The Respondent never reported this incident to the Department and never told anyone at Circuit City what Person A had told him about the theft. He explained that he did not want to do this because he would have had to put his name on a complaint report which would cause problems for him because he had not been approved to work off-duty employment and he believed that he would be terminated from the Department for engaging in unapproved off-duty employment.

The Respondent testified that he next saw Person A at Person E's funeral, but he did not speak to him. Since October 5, 2008, the Respondent has not socialized with Person A or had any further contact with him. He never saw the televisions that Person A is alleged to have stolen. He stated that he was never part of any plan to steal televisions from

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Circuit City and that he never agreed with Person A to do so. He denied knowing that a theft was occurring at the time the theft was taking place.

Respondent described his state of mind at his official Department interview as "concerned." He stated that he did not intentionally make any inaccurate or misleading statements during this interview. Rather, he felt "intimidated" and "absolutely afraid" that he was going to lose his job. The Respondent was placed on Modified Assignment immediately after his official Department interview on December 30, 2009.

On cross-examination, Respondent confirmed that during his official Department interview he initially denied knowing Person A and stated that Person A was not a friend. He admitted that his statements during the interview that he had not seen Person A for years and that he had no memory of telephoning Person A were not accurate. He explained that during the interview, "I started to recollect things. At the time, I didn't recall. And as we moved on, I remembered, yes, I did call him."

Respondent acknowledged that although he had initially stated that the doorman in his building gave Person A his cell phone number because Person E had died, later during the interview he had acknowledged that some of the phone calls on October 5, 2008 concerned Person A coming to Circuit City that day. The Respondent acknowledged that during his official Department interview he had initially stated that Person A did not visit him at Circuit City on October 5, 2008 and that when he later stated that he could not recall. He stated that he did not "put the two together until the end of the day."

Respondent confirmed that Person A did not stop and speak with him while he was in Circuit City and that the only interaction they had was when Person A showed him his receipt. He denied that he had even suspected that Person A was stealing merchandise

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while Person A was at the store. He stated that he first realized that a theft had occurred after speaking with Person B and seeing the video. He admitted that even after he saw the video he did not take any police action. He conceded that he saw Person A at Person E's funeral, but he asserted that he did not speak with Person A then or any time after that.

FINDINGS AND ANALYSISSpecification No. 4

Respondent admitted, at his official Department interview and at this trial, that between November 23, 2007 and October 5, 2008, while he was off-duty he worked for Eastern Security as an armed security guard without having sought or obtained Department approval to engage in this off-duty employment.

Respondent, having pleaded Guilty, is found Guilty.

Specification Nos. 1 and 2

It is charged that Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by associating with Person A, a person who was engaged in criminal activity, and that he acted in concert with Person A in the commission of a larceny of television sets from Circuit City on October 5, 2008.

The record establishes that Person A stole television sets from Circuit City on October 5, 2008. I credit Person B's statement to Albertelli that after he received an anonymous phone call from a female who told him that she had just observed a black male outside Circuit City putting a number of televisions into a vehicle he went to the check out register and ascertained that no televisions had been sold that day. That

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Person A was the thief is established by statements Respondent made at his official Department interview (DX 3) that when Person B played for him the video recording produced by Circuit City's security camera he saw Person A walking out of the store with televisions and that Person A later told him that he had stolen televisions from Circuit City on October 5, 2008, and offered him one of the stolen television sets.

To prove that Respondent acted in concert with Person A in the theft of television sets from Circuit City on October 5, 2008, the Department offered the following evidence: The video recording produced by Circuit City's security camera which was focused on the door through which customers entered and exited Circuit City (DX 6) which depicts Person A and Respondent interacting on October 5, 2008; Respondent's cell phone records (DX 4) reflecting calls between Respondent's cell phone and Person A's cell phone on October 5, 2008; and statements the Respondent made at his official Department interview regarding Person A (DX 3).

The Video Recording and the Cell Phone Records

The video recording produced by the store's security camera (DX 6) contains a time clock which denotes the time of day in hours, minutes and seconds. The cell phone records (DX 4) documenting Respondent's cell phone use on October 5, 2008, denote the time of day of the call, the duration of the call in minutes and seconds, and whether the listed call is an incoming call placed from Person A's cell phone to Respondent's cell phone, or an outgoing call from Respondent's cell phone to Person A's cell phone.

The Respondent's cell phone records show that on October 5, 2008, the Respondent received incoming calls from Person A's cell phone at 11:51 am, 1:12 pm,

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1:57 pm, 2:18 pm, 2:39 pm, 2:40 pm, and 2:54 pm., and that Respondent placed calls to Person A's cell phone at 2:40 pm, 2:57 pm, and 3:00 pm.

At 3:05:31 pm (five minutes after Respondent's call to Person A's cell phone at 3:00 pm), Person A is seen on the video entering Circuit City. At 3:07:55 pm, the Respondent appears on the video working as the security guard at the front door of the store and is seen checking purchase receipts as customers leave the store with merchandise. At 3:10:35 pm, Person A approaches Respondent holding two large boxes in his hands. He sets the boxes down on the floor and shows a small piece of paper to the Respondent. They do not engage in conversation. At 3:10:40 pm, Person A exits the store holding the two boxes.

At 3:19:28 pm, Person A is seen on the video reentering Circuit City and walking past the Respondent. Again, there is no interaction between the two men. At 3:21:00 pm, Person A again approaches the exit door carrying two televisions. He presents a small piece of paper to Respondent which Respondent briefly examines. Person A exits the store carrying the two televisions at 3:37:00 pm, only six seconds after he had approached Respondent.

Respondent immediately, at 3:38 pm, placed an outbound call on his cell phone to Person A. The call lasts 16 seconds. Less than one minute after this call ends, Person A reenters the store and walks past the Respondent with no interaction between them. At 3:40:35 pm, Person A approaches the exit of the store carrying one television. The Respondent is seen on the video looking directly at Person A. At 3:40:41 pm, Person A retrieves a small piece of paper from his pocket, shows it to the Respondent, and then exits the store carrying the television.

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At 3:42:55 pm, Person A reenters the Circuit City and passes the Respondent with no interaction. Less than one minute later, Person A approaches the Respondent carrying one television. After a three second interaction, Person A exits the store with the television at 3:43:57 pm.

About 30 minutes after Person A exited the Circuit City for the fourth and final time as depicted on the video, Respondent placed a call from his cell phone to Person A's cell phone which lasted 17 seconds. Respondent's cell phone records reflect 11 more calls between Respondent's cell phone and Person A's cell phone later that afternoon and evening, ranging from nine seconds to over six minutes.

When examined in conjunction with each other, the video and the exchange of cell phone calls constitute convincing evidence that the Respondent was acting as Person A's willing accomplice in Person A's theft of television sets from the store. The timing and brevity of the calls that Respondent made to Person A's cell phone is consistent with the action of a lookout who is communicating to the thief that the coast is clear for the thief to walk out of the store with the stolen merchandise.

The explanation Respondent offered for why he and Person A exchanged calls on October 5, 2008 is inconsistent with their interactions inside Circuit City as depicted in the video

In his testimony at his trial, Respondent asserted that the only reason he and Person A called each other on October 5, 2008 was to discuss that their mutual friend Person E had died and to discuss that, because Person E lived alone, there was no one to care for Person E's bird and his cat. Respondent's asserted reason for why he and Person A exchanged

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calls on October 5, 2008, is completely inconsistent with their four interactions inside Circuit City as depicted in the video.

Although, according to Respondent, he and Person A were both mourning the death of their mutual friend Person E, on all four occasions when Person A approached Respondent as he was leaving the store carrying televisions, neither greets the other, they do not shake hands, neither is seen making any gesture of recognition and they do not engage in conversation.

I reject Respondent's claim that even though he had seen Person A before and even though they had conversed on the phone earlier that day, he did not recognize Person A on any of the four occasions when Person A approached Respondent as he was leaving the store because Person A appeared different than last time he had seen him because he had facial hair and a full beard.

All four of their interactions as Person A was leaving the store with televisions are devoid not only of any indication that they have just lost a mutual friend but any indication that they even know each other. On the contrary, anyone viewing this video who was not aware that Respondent and Person A were acquaintances would assume that the two men did not know each other and that their four interactions consisted of nothing more than a security guard checking the purchase receipt of a customer who was a stranger to him.

I can only conclude that Respondent and Person A avoided making friendly gestures toward one another and did not engage in conversation because they wanted anyone who was observing their interactions to conclude that they did not know each other.

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The answers Respondent initially provided at his official Department interview demonstrated a consciousness of guilt regarding his association with Person A

The evidence discussed above which shows that Respondent acted in concert with Person A in stealing television sets from Circuit City on October 5, 2008, is supported by the answers the Respondent initially provided to the questions posed to him at his official Department interview which demonstrated consciousness of guilt regarding his both his association with Person A and Person A's presence at Circuit City on October 5, 2008.

At his official Department interview, Respondent initially stated that he did not know Person A. However, he later admitted that Person A was an acquaintance but he falsely asserted that he had not seen Person A for years. When he was initially asked if Person A had visited him on October 5, 2008, the Respondent stated that he did not. He later asserted that he could not remember. Only after he was confronted with the fact that his interviewers were aware that Person B had made him watch the surveillance video on October 5, 2008, did he finally admit that Person A had come into Circuit City that day. Finally, near the end of his official Department interview, Respondent stated that later that day Person A had called him and told him that he had stolen television sets from the store and that Person A then offered him one of these stolen sets.

Based on the above, Respondent is found Guilty.

Specification No. 3

It is charged that Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by failing to take police action when he had knowledge that a larceny was being committed by Person A.

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At his official Department interview, Respondent stated that Person A knew he was working at that particular Circuit City and that when he observed Person A exit the store with more than two boxes, he suspected him of theft. Respondent also asserted that Person A had called him and told him that he had stolen television sets from the store. Respondent stated that because he did not want the Department to learn about his unauthorized off-duty employment, he did not take any police action even though he had knowledge that a larceny had been committed by Person A.

Respondent is found Guilty.

Specification No. 5

It is charged that Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that he impeded a Department investigation by making inaccurate and misleading statements during his official Department interview.

During his official Department interview, the Respondent initially stated that he never engaged in any off-duty employment. However, after he was advised that he could be terminated for intentionally making false statements, the Respondent admitted that he worked off-duty employment for Eastern Security Corporation at Circuit City.

Also, as discussed above under Specification Nos. 1 and 2, Respondent's initial statements during his official Department interview regarding knowing Person A and whether Person A had come to Circuit City on October 5, 2008, were inaccurate and misleading. Also, I do not credit Respondent's subsequent statement at his official

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Department interview that he first became aware that Person A had been stealing television sets from Circuit City on October 5, 2008, when Person A called him that evening.

Thus, it is clear that Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by impeding the Department's investigation of his knowledge of and involvement in Person A's larceny by making inaccurate and misleading statements during his official Department interview.

Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

The Respondent was appointed to the Department on September 29, 2000. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pleaded Guilty to working as an armed security guard without having sought or obtained Department approval to engage in this off-duty employment by admitting that while he was off-duty on and between November 23, 2007, and October 5, 2008, he worked for Eastern Security. Respondent's testimony that he was financially strapped and that he believed that he would be denied because he had just completed a period on dismissal probation does not serve to excuse or even mitigate his failure to seek Department approval. Respondent's action of intentionally hiding from the Department the fact that he was engaged in off-duty employment as an armed security guard in itself constitutes serious misconduct.

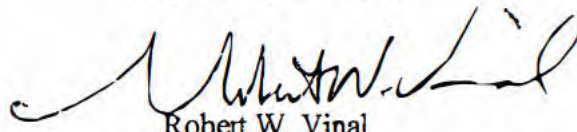
POLICE OFFICER REGINALD JONES

Even more seriously, Respondent has been found Guilty of engaging in conduct prejudicial to the good order, efficiency or discipline of the Department by associating with Person A, by acting in concert with Person A in the commission of a larceny and by failing to take police action when he had knowledge that a larceny was being committed by Person A. Respondent has also been found Guilty of impeding a Department investigation by making inaccurate and misleading statements during his official Department interview.

The Assistant Department Advocate recommended that Respondent be Dismissed from the Department.

Having examined the facts and circumstances surrounding Respondent's misconduct, and having examined Respondent's performance record and disciplinary record, I recommend that the Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,



Robert W. Vinal

Assistant Deputy Commissioner - Trials

APPROVED



MAR 02 2012
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

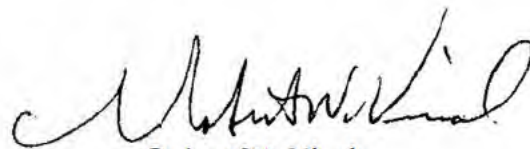
From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER REGINALD JONES
TAX REGISTRY NO. 927006
DISCIPLINARY CASE NOS. 2010-645

The Respondent received an overall rating of 3.5 on his 2010 performance evaluation, 2.5 on his 2009 evaluation, and 3.5 on his 2008 evaluation. He has no medals. [REDACTED]

He has a prior formal disciplinary record. In 2006, he forfeited 30 vacation days and ten days served on suspension, for a total forfeiture of 40 days, and was placed on one year dismissal probation after he was found guilty of wrongfully interfering with an official federal investigation. In 2009, he forfeited ten vacation days after he pleaded guilty to failing to stay alert while on duty.

On April 9, 2007, he was placed in Level 3 Special Monitoring.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner – Trials